

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samrawit Tadesse	Team: Team # 7	CCRB Case #: 200611365	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 08/21/2006 12:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/21/2008	Precinct: 71		
Date/Time CV Reported Mon, 08/21/2006 3:12 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/25/2006 12:12 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Eliot Arias	18208	936140	071 PCT
2. SGT Robert Troise	05110	889375	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jamayne Anthony	01690	901123	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Robert Troise	Discourtesy: Sgt. Robert Troise spoke obscenely and rudely to § 87(2)(b)	A . Exonerated
B . POM Eliot Arias	Abuse: PO Eliot Arias searched the car in which § 87(2)(b) was an occupant.	B . Unfounded
C . POM Eliot Arias	Force: PO Eliot Arias used physical force against § 87(2)(b)	C . Exonerated
D . POM Eliot Arias	Discourtesy: PO Eliot Arias spoke obscenely and rudely to § 87(2)(b)	D . Unfounded

Synopsis

On August 21, 2006, at approximately 12pm, § 87(2)(b) stopped her car at the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn. Three officers, identified through this investigation as PO Eliot Arias, PO Jamayne Anthony, and Sgt. Robert Troise of the 71st Precinct, were directing traffic at the intersection, which was closed due to a scheduled concert set to take place that same evening. § 87(2)(b) alleged that she was approached by Sgt. Robert Troise and was told by him to “remain right fucking there,” (Allegation A). PO Arias and PO Anthony walked over to where § 87(2)(b) had stopped her vehicle. § 87(2)(b) told PO Anthony, who was standing on her passenger side, that she wanted to make a right turn onto § 87(2)(b). PO Anthony and PO Arias told § 87(2)(b) that she had to make a left turn and go around the block to enter § 87(2)(b) from the other side. § 87(2)(b) alleged that when she insisted that she wanted to make a right turn onto § 87(2)(b), PO Arias opened her passenger side car door, picked up her open purse and flung about its contents inside the car (Allegation B). § 87(2)(b) who had started to yell at this point, locked herself in her car while PO Arias started walking to the driver side of her vehicle. § 87(2)(b) alleged that PO Arias then unlocked her car doors, opened her driver side door, and pulled her out of her car (Allegation C). After PO Arias had removed § 87(2)(b) from her car, she alleged that PO Arias asked her, “Do you think I want to be here on a fucking Monday?” (Allegation D). It is recommended that Allegation (A) be exonerated § 87(2)(g).

§ 87(2)(b) It is also recommended that Allegation (B) be unfounded § 87(2)(g).
§ 87(2)(b) It is recommended that Allegation (C) be exonerated § 87(2)(g).
§ 87(2)(b) It is further recommended that Allegation (D) be unfounded § 87(2)(g).

Summary of Complaint

§ 87(2)(b) called IAB on August 21, 2006 to file a complaint, which was forwarded the CCRB on August 25, 2006 (enc. 7a-c). § 87(2)(b) gave a phone narrative of her complaint on August 30, 2006 (enc 9a-b). § 87(2)(b) was interviewed at the CCRB on September 8, 2006 (enc. 9c-9p). § 87(2)(g).

On August 21, 2006, at approximately 12pm, § 87(2)(b) was in her car, a green 2005 Mitsubishi, with her § 87(2)(b) daughter, § 87(2)(b) trying to get to her residence on § 87(2)(b). § 87(2)(b) went up § 87(2)(b) and § 87(2)(b) § 87(2)(b) told an officer that she wanted to get on to § 87(2)(b) to get home. § 87(2)(b) was told by an officer to go around to § 87(2)(b) and § 87(2)(b) because § 87(2)(b) was now a one way street since the NYPD had barricaded the other side of the street. § 87(2)(b) went to § 87(2)(b) and § 87(2)(b) where another officer told her to go to § 87(2)(b). § 87(2)(b) went around the block and went back to § 87(2)(b) and § 87(2)(b). An officer told her to go back to § 87(2)(b) and § 87(2)(b). When § 87(2)(b) finally got back to § 87(2)(b) she said to a sergeant, identified through this investigation as Sgt. Robert Troise, that she would like to go to § 87(2)(b). § 87(2)(b) used her hands to point in the direction of § 87(2)(b). § 87(2)(b) said that she was not going back around again to get to § 87(2)(b). § 87(2)(b) stopped her car and put in park, but the ignition was still on. § 87(2)(b) told Sgt. Troise that she lived on the block. Sgt. Troise came to § 87(2)(b)'s driver side and said to her that she could not go to § 87(2)(b). § 87(2)(b) rolled down her driver side window a little bit, since the air conditioner in the car was on, and told Sgt. Troise that she had been going around in circles. Sgt. Troise said to § 87(2)(b) that he had told her that she could not make a right onto § 87(2)(b) and that she had to go back to § 87(2)(b). § 87(2)(b) told Sgt. Troise, “I have been driving around and around. Enough is enough; I need to get home. My daughter is not feeling well.” § 87(2)(b) indicated that she was upset and her tone of voice reflected her distress. Sgt. Troise said to § 87(2)(b) “Okay, if you don’t want to listen, you stay right fucking there and don’t move” and walked back to the where the barricades were set up. § 87(2)(b)'s car was about 50 to 75 feet away from the barricades.

§ 87(2)(b) stayed in her car and called her husband, § 87(2)(b) § 87(2)(b) with her cell phone, which she had in her hand, and told him that police officers would not let her down the block. § 87(2)(b) also dialed 911 and she told the operator that the officers would not allow her to go down the block. The 911 operator told § 87(2)(b) that there probably was a reason why they were not allowing her to do that. The 911 operator told § 87(2)(b) to comply with the officers. § 87(2)(b) tried to explain that she lived on the block but the call was dropped. One of the officers, identified by name by § 87(2)(b) as PO Anthony, came up to where § 87(2)(b) had parked her vehicle, on her passenger side. § 87(2)(b) had put her driver side window up by this time. § 87(2)(b) rolled

down the passenger side window all the way down and PO Anthony asked § 87(2)(b) “Where are you living?” § 87(2)(b) gave him her home address. PO Anthony and § 87(2)(b) had a back and forth discussion about where § 87(2)(b) s house was located. § 87(2)(b) felt that PO Anthony was getting frustrated with the discussion.

Another officer, identified by § 87(2)(b) by name as PO Arias, came to where § 87(2)(b) was parked and started to slap on her driver side window with the palm of his hand. PO Anthony, raised up from where he was bent on § 87(2)(b) s passenger side, and told PO Arias, “No, no, no, no. Don’t do that.” PO Arias stopped slapping the window and walked around to the passenger side. PO Anthony and § 87(2)(b) started to talk about where she lived. § 87(2)(b) then told PO Arias that she was going to call her attorney because what the officers were doing was harassment. PO Arias became angry and opened § 87(2)(b) s passenger side door. § 87(2)(b) indicated that she was loud and very frustrated when she said this to PO Arias. § 87(2)(b) had a small purse on the passenger seat, which she had left open, and PO Arias picked up her purse and flung it about and the contents went everywhere in the car, including § 87(2)(b) s driver’s license.

§ 87(2)(b) started screaming and crying because her daughter was crying and PO Arias was in her vehicle. PO Arias, who had his whole body in § 87(2)(b) s car, reached over, turned the car ignition off, and took § 87(2)(b) s key out. PO Arias kept the car keys in his hand. § 87(2)(b) started to cry even more. PO Arias got out of § 87(2)(b) s vehicle and walked around to the driver’s side. As he was walking around, § 87(2)(b) pressed the lock on the driver side door to lock her car, but PO Arias unlocked the car using the remote on § 87(2)(b) s car keys. PO Arias opened the driver side door. § 87(2)(b) started to scream even more and told her crying daughter to get out of the car. PO Arias told § 87(2)(b) to get out of the vehicle and § 87(2)(b) told her daughter to get out of the car again. § 87(2)(b) s daughter who was sitting in the back driver side seat was crying and screaming. An officer, who § 87(2)(b) could not remember, told her daughter, “You just hush, just be quiet in the back.” § 87(2)(b) told the officer to not speak to her child like that.

§ 87(2)(b) used both her hands to grab the steering wheel as PO Arias told her to get out of the vehicle. § 87(2)(b) asked PO Arias, “What it is I did? What it is I did wrong? PO Arias used two hands to grab § 87(2)(b) legs, around the ankle area. PO Arias pulled § 87(2)(b) legs and tried to drag her out of the vehicle. But when PO Arias was unable to drag § 87(2)(b) out by her feet, he let go and grabbed § 87(2)(b) on her left bicep and wrist using both of his hands. § 87(2)(b) was holding on to the steering wheel while being dragged out of her vehicle and asking, “What it is I did wrong? If I am being arrested tell me what it is I did wrong. All I want to do is go home.” PO Arias pulled § 87(2)(b) out of her vehicle on her side. § 87(2)(b) was dragged out of her vehicle sideways and she was deadweight. As a result § 87(2)(b) hit her back along the car. § 87(2)(b) did not have any back pains. PO Arias helped § 87(2)(b) to stand up, since she was still deadweight. PO Arias faced § 87(2)(b) against her vehicle and her chest was making contact with the area between the driver side and the rear driver side door. PO Arias then put § 87(2)(b) s hands behind her back and put handcuffs on her wrists. § 87(2)(b) indicated that she was kneed in the back but did not specifically state at what point she was kneed in the back and by whom. One of the officers said, “You think I want to be here on a fucking Monday?”

PO Anthony placed § 87(2)(b) in a 71st Precinct patrol car. When the neighbors saw that § 87(2)(b) was being arrested they started to call § 87(2)(b) who was only two or three houses away from where the incident took place. At this point, § 87(2)(b) came, with their § 87(2)(b), § 87(2)(b), § 87(2)(b) running to the scene. § 87(2)(b) said, “Yo, yo, yo. What’s happened? My wife is just getting over cancer,” to PO Anthony. PO Anthony and PO Arias spoke with the sergeant. § 87(2)(b) was in the patrol car for 45 minutes before she was given three summonses and let go. The summonses were for § 87(2)(a) 160.50 § 87(2)(b). The handcuffs were taken off of § 87(2)(b) and § 87(2)(b) drove to her home since her car had been moved from § 87(2)(b) to § 87(2)(b).

§ 87(2)(b) was in “excruciating” pain and her left arm started to swell so she walked to the § 87(2)(b), § 87(2)(b). § 87(2)(b) told the ER what happened § 87(2)(b). § 87(2)(b) provided pictures to the CCRB of the injuries she sustained as a result of being pulled out of her vehicle. The injuries are not visible in any of the pictures (enc. 9h-j).

When § 87(2)(b) got home she called the 71st Precinct and spoke to an officer who said that there was a witness to the incident who was the sergeant on the scene, Sgt. Troise. Sgt. Troise came on the phone and told § 87(2)(b) that she tried to run him over with her car. § 87(2)(b) told him that if she had tried to run him down she should have been arrested for and charged with trying to run over a police officer and child endangerment instead of being released with three tickets. Sgt. Troise asked to speak to § 87(2)(b) and when § 87(2)(b) said that § 87(2)(b) did not want to talk, Sgt. Troise hung up the phone.

§ 87(2)(b) described Sgt. Troise as a white male, 5'5" tall, 150lbs, dressed in jeans and a short sleeve button-up shirt. PO Anthony is a black male in his mid thirties, 5'6" tall, 160lbs, stocky, dressed in uniform with short hair. PO Arias was a Hispanic male, dressed in uniform, 6'1" tall, 140lbs, and in his early thirties. § 87(2)(b) stated that her husband, § 87(2)(b) § 87(2)(b) got the names and shield numbers of PO Arias, 18208, and PO Anthony, 01690, from them.

§ 87(2)(b) stated that PO Arias told her "Do you think I want to be here on a fucking Monday," when she filed her initial complaint with IAB. When § 87(2)(b) provided her phone narrative on August 30, 2006, she did not make any such allegation against any of the officers. When § 87(2)(b) was interviewed at the CCRB on September 8, 2006, she alleged that someone said that to her but she was unable to remember who said it.

Results of Investigation

Officer Identification:

§ 87(2)(b) provided the names and shield numbers of PO Jamayne Anthony and PO Eliot Arias, which were provided to her husband, § 87(2)(b) § 87(2)(b) by the officers themselves. A check of the 71st Precinct's finalized roll call revealed that PO Anthony and PO Arias were indeed partnered together on the date of the incident (enc. 19a-j). PO Arias and PO Anthony identified Sgt. Robert Troise as the supervisor who was on the scene during the incident during their CCRB interviews.

Sgt. Robert Troise was interviewed at the CCRB on October 30, 2006 (enc. 14a-c):

On August 21, 2006, Sgt. Troise worked from 6:50am to 3:57pm and worked overtime until 12:07am, on August 22, 2006. Sgt. Troise was in charge of a barrier detail for the 71st Precinct, which entailed a number of officers under his command setting up approximately 1000 barriers for a detail that evening. Sgt. Troise had twelve police officers under his supervision. Sgt. Troise was dressed in plain clothes and was working on foot at the time of the incident.

Sgt. Troise read his memo book entries regarding the incident into the record, but the entry did not have a time of occurrence because he did not have his memo book on him at the time of the incident (enc. 13a-c):

Disorderly f/b attempted to go around barriers and bumped into me. Scuffle ensued as she failed to follow PO Anthony and Arias lawful orders. Placed under for § 87(2)(b) Marked on the scene and (3) summonses issued. § 87(2)(b)

Sgt. Troise directed the set up of the barriers. The barriers ran the entire length of § 87(2)(b) and § 87(2)(b) the intersection where the incident in question occurred. The reason for this was so that nobody would be able to travel in an easterly or westerly direction because a Dumpster was blocking the street. Sgt. Troise only allowed ambulances going in an easterly direction were to go on the block. The barriers were set up in such a way that only ambulances, en route to § 87(2)(b), which was located on the block, would be allowed down the block. Sgt. Troise had a marked unit, with uniformed officers, on the scene to assist him with traffic, since he was in plain clothes.

§ 87(2)(b)'s vehicle approached, going southbound on § 87(2)(b) at § 87(2)(b) § 87(2)(b) pointed her finger in the direction she wanted to go while looking towards Sgt. Troise, who was standing directly behind the barriers blocking the street and directing the ambulances that were going to § 87(2)(b). Sgt. Troise sent PO Anthony to speak to § 87(2)(b) who he later learned lived on the block, after telling him that if § 87(2)(b) lived between where Sgt. Troise was and the Dumpster, he would allow § 87(2)(b) to proceed the wrong way to get to her residence. § 87(2)(b) had a child in the back seat of her vehicle. Sgt. Troise told PO Anthony that if § 87(2)(b) lived between the Dumpster and the next cross street, then she would have to go around since there were many ambulances coming through. Although he did not hear what was said between PO Anthony and § 87(2)(b) Sgt. Troise saw that § 87(2)(b) was unhappy, flailing her arms, and at one point was on her cell phone. § 87(2)(b) pulled away, in an "irate manner," around PO Anthony.

The way the barriers were set up, § 87(2)(b) had to attempt to make a left hand turn and then cut a hard right hand turn, before her car approached where Sgt. Troise was standing. Sgt. Troise observed § 87(2)(b) drive her car around the barrier, make an illegal turn in the wrong flow of traffic, and head towards where he was standing. § 87(2)(b) pulled her vehicle right up to Sgt. Troise and “tapped” his foot. By the time § 87(2)(b) reached Sgt. Troise the vehicle had braked. Sgt. Troise stated that he knew that § 87(2)(b) was not attempting to run him down but that she had “tapped him” in such a way as to “make a point.” The front bumper of § 87(2)(b)’s car tapped Sgt. Troise at his knee, where he was standing. Sgt. Troise stated that he never spoke discourteously to § 87(2)(b).

At this point, the two uniformed officers in the marked patrol car approached § 87(2)(b) who began yelling and screaming in an irrational manner. § 87(2)(b)’s car was blocking the path ambulances take to go to § 87(2)(b). The two officers tried to tell § 87(2)(b) that she was blocking the ambulance path and asked her to move her car but she “didn’t want to hear anything.” One of the officers repeatedly told § 87(2)(b) to put her car in park. There was an oncoming ambulance and at this point Sgt. Troise ordered PO Arias and PO Anthony to arrest § 87(2)(b). § 87(2)(b) put up a struggle with the two police officers, who were both on the driver side of the vehicle, and refused to get out of her car. One of the officers, who Sgt. Troise could not remember, reached into § 87(2)(b)’s vehicle on the driver’s side and put the gearshift into park. At this point Sgt. Troise was standing five feet in front of § 87(2)(b)’s car. One of the officers opened her driver side car door and PO Anthony and PO Arias grabbed § 87(2)(b) by her arms and pulled her out of her vehicle for failing to obey orders to move her car and/or get out of the car. § 87(2)(b) was holding on to the inside of the vehicle in an effort not be taken into custody. Sgt. Troise stated that it was “minimal force” used against § 87(2)(b) and that she was not thrown to the ground or to the car. § 87(2)(b) was pulled out of her vehicle and handcuffed. It took about a minute for PO Anthony and PO Arias to get § 87(2)(b) out of her car and in handcuffs. Sgt. Troise did not see § 87(2)(b) being pulled by her feet. § 87(2)(b) did not have any visible physical injuries and did not state that she had any.

Once § 87(2)(b) was taken out of the car, Sgt. Troise got into her car and parked it in front of a parked RMP because her car was blocking the ambulance that was on its way to § 87(2)(b). § 87(2)(b) was placed in the back of the parked RMP in handcuffs. § 87(2)(b) was “screaming and yelling” while in the back of the RMP. § 87(2)(b) failed to provide any paperwork showing she was a licensed driver. Sgt. Troise did not know which officer issued § 87(2)(b) the summonses.

§ 87(2)(b)’s husband came running down the block. Sgt. Troise walked up to § 87(2)(b)’s husband and explained what had just happened. § 87(2)(b)’s husband was very upset and asked Sgt. Troise if there was an alternate way to resolve the situation. Sgt. Troise told § 87(2)(b)’s husband, “I’m a gentleman. She did wrong and she’s going to have to pay for it. If you can get her to calm down, I’ll issue her summonses here because I have the right to do so in lieu of an arrest.” § 87(2)(b)’s husband went over to the RMP, talked with his wife, and calmed § 87(2)(b) down. § 87(2)(b) was issued summonses and let go on the scene.

Sgt. Troise had no recollection of any verbal communication with § 87(2)(b) and later learned that § 87(2)(b) lived on § 87(2)(b).

PO Arias was interviewed at the CCRB on November 10, 2006 (enc. 12a-c):

On August 21, 2006, PO Arias worked from 7:05am to 3:40pm. PO Arias was assigned to RMP 1969 and was working in Sector Patrol I and J. PO Arias was working with PO Anthony. PO Arias was dressed in uniform.

PO Arias read his memo book entries regarding the incident into the record (enc. 11a-d):

1200: § 87(2)(b) (20)05 Mitsu(bishi) Gray S/B (southbound) at § 87(2)(b) and § 87(2)(b)

§ 87(2)(a) 160.50

§ 87(2)(b) refused to go to direction officer was telling her. Almost run over me, PO Anthony, and Sgt. Troise 1245: 96x3 (Three summonses served)

PO Arias provided a similar narrative as Sgt. Troise. The only exception was that § 87(2)(b) opened her driver side car door and started exiting her car when ordered to get out by PO Arias, PO Anthony, and Sgt. Troise but then changed her mind and went back inside her vehicle and refused to exit. PO Arias did not remember § 87(2)(b)

making a phone call on her cell phone during the incident. PO Arias stated that he never went in § 87(2)(b)'s vehicle and flung about her purse and he never said to § 87(2)(b) "Do you think I want to be here on a fucking Monday."

PO Anthony was interviewed at the CCRB on November 17, 2006 (enc. 17a-c):

On August 21, 2006, PO Anthony worked from 7:05am to 3:40pm. PO Anthony was assigned to RMP 1969 and was working in Sector Patrol I and J. PO Anthony was working with PO Arias. PO Anthony was dressed in uniform.

PO Anthony read his memo book entries regarding the incident into the record (enc. 16a-b):

1200: Car stop c/o of § 87(2)(b) and § 87(2)(b)

1245: 96x3 (Summonses issued for § 87(2)(a) 160.50
(enc. 15a)

§ 87(2)(g) PO Anthony did not remember § 87(2)(b) making a phone call on her cell phone during the incident. PO Anthony stated that he opened all four of § 87(2)(b)'s car doors by pressing the unlock button inside her car through an open window on her passenger side after she locked herself in. As a result PO Arias was able to open her driver side door and, with PO Anthony aiding him, they were able to pull § 87(2)(b) out of her vehicle.

Medical Records for § 87(2)(b) (enc. 9k-o):

§ 87(2)(a) PHL § 18(6)

NYPD Documents (enc.19a-j):

The finalized roll call shows that PO Arias and PO Anthony were assigned to patrol Sectors I and J together.

Summonses issues to § 87(2)(b) (enc. 15a):

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian's CCRB History (enc. 6a):

§ 87(2)(b) has no prior complaints with the CCRB.

Officers' CCRB History (enc.4a-5a):

No allegations have been substantiated against PO Eliot Arias and Sgt. Robert Troise.

Conclusions and Recommendations

Disputed/Undisputed Facts:

It is not disputed that § 87(2)(b) was pulled out of her vehicle by PO Arias after she was ordered to get out and she refused and that § 87(2)(b) was offering resistance to PO Arias by holding on to her steering wheel while she was being pulled out of her vehicle. It is also not in dispute that § 87(2)(b)'s husband arrived on the scene after the incident and that § 87(2)(b) was issued three summonses by PO Anthony and was released. § 87(2)(g)

Assessment of credibility:

§ 87(2)(g)

§ 87(2)(g)

Allegation (A): Sgt. Robert Troise spoke obscenely and rudely to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Troise told her to “remain right fucking there” when she insisted that she needed to make a right turn onto § 87(2)(b) after he told her that she could not. This part of § 87(2)(b)'s statement is refuted by the fact that both PO Arias and PO Anthony stated that the only time Sgt. Troise spoke to § 87(2)(b) was when he was telling her to stop her car as she was driving it towards themselves and Sgt. Troise. Although Sgt. Troise stated that he never spoke to § 87(2)(b) PO Anthony and PO Arias testified that Sgt. Troise told § 87(2)(b) to stop her car. § 87(2)(g)

§ 87(2)(b) Although Patrol Guide Procedure 104-1 dictates that officers shall be "courteous and respectful," officers may use "ostensibly discourteous language" in order to "obtain needed cooperation" or to control a "stressful street situation" (*PD v. Quinn Disciplinary Case No. 78163/02*; *PD v. Howard Disciplinary Case No. 78255102*) (enc. 1a-2a). § 87(2)(g)

§ 87(2)(b). It is therefore recommended that Allegation (A) be exonerated.

Allegation (B): PO Eliot Arias searched the car in which § 87(2)(b) *was an occupant.*

§ 87(2)(g)

§ 87(2)(b) § 87(2)(b) alleged that PO Arias took her purse and emptied the contents inside her car. PO Arias stated that he never touched § 87(2)(b)'s purse and did not even see her purse. PO Anthony testified that he never saw PO Arias touch § 87(2)(b)'s purse. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that Allegation (B) be unfounded

Allegation (C): PO Eliot Arias used physical force against § 87(2)(b)

According to New York State Penal Law 35.30 (enc. 3a), “A police or peace officer, in the course of effecting or attempting to effect an arrest, or of preventing or attempting to prevent escape from custody, of a person whom he reasonably believes to have committed an offense, may use physical force when and to the extent he reasonably believes such to be necessary to effect the arrest.” § 87(2)(g)

§ 87(2)(b) refused to exit her vehicle when ordered to do so, which § 87(2)(b) also freely admitted to in her CCRB interview. PO Arias proceeded to pull § 87(2)(b) out of her vehicle in order to effect an arrest after § 87(2)(b) almost hit him, PO Anthony, and Sgt. Troise with her vehicle. When PO Anthony observed § 87(2)(b)'s actions, he aided PO Arias in pulling § 87(2)(b) out of her vehicle. In addition, PO Anthony and Sgt. Troise testified that § 87(2)(b) grabbed the steering wheel of her car in order to prevent being arrested. § 87(2)(g)

It is therefore recommended that Allegation (C) be exonerated.

Allegation (D): PO Eliot Arias spoke obscenely and rudely to § 87(2)(b)

When § 87(2)(b) initially filed her compliant with Internal Affairs on August 21, 2006, she stated that PO Arias said to her, "Do you think I want to be here on a fucking Monday," but she never made any discourtesy allegations against PO Arias when she gave her phone narrative on August 30, 2006. § 87(2)(b) then testified that one of the officers on the scene told her, "Do you think I want to be here on a fucking Monday," but she could not remember who it was. § 87(2)(g)

it is recommended that Allegation (D) be unfounded.

Allegations not pled:

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: